FILL OUT ALL SECTIONS OF THIS FORM BEFORE FILING WITH THE COUNTY CLERK AND FIDUCIARY CLERK/COURT – MUST BE COMPLETED WITHIN 30 DAYS OF SALE

If this is an E-Filed case, upload this form to NYSCEF as a "Foreclosure Action Surplus Monies Form"

FORECLOSURE ACTION SURPLUS MONIES FORM

SUPREME COURT/COUNTY COURT OF THE STATE OF NEW YORK:

COUNTY OF KINGS

CITIMORTGAGE, INC., SUCCESSOR BY MERGER TO ABN AMRO MORTGAGE GROUF INC.,

Plaintiff,

-against-

MIRIAM DELVALLE; BETTY ESPINAL; BETTY ESPINAL; BETTY M ESPINAL; JUDITH FABRE, et al

Defendant.

Index No. 16840/2010

MORTGAGED PROPERTY:
638 AUTUMN AVE, BROOKLYN, NY 11208

COUNTY: KINGS

SBL #:

Sale Date: 3/12/2026

A. To be completed by the Referee

1. Final Judgment Amount per Judgment: $ 871,359.54
2. Adjusted Judgment Amount (Upset Price): $ 760,750 –
   (This is the total amount due to the bank after post-sale disbursements, fees, taxes, utilities, etc.)
3. Sale Price: $ 500
   (To calculate if there is a surplus, subtract the higher of line 1 or line 2 from line 3 and enter any surplus on line 4)
4. Surplus Amount (enter $0.00 if no surplus) $ 0.00
   ***If there are surplus funds, attach proof/receipt that the surplus amount was deposited with the Treasurer, Comptroller, Commissioner of Finance, Clerk of Court, etc.*

Referee's TOTAL compensation awarded/fees earned in this matter: $

Referee Name: STEVEN Z. NAIMAN, ESQ. Telephone: (212) 840-7188

Address: 485 MADISON AVE FL 16, NEW YORK, NY 10022

Email: stevezlaw@aol.com Signature/Date:

**If plaintiff is also the purchaser, complete both B. and C.*

B. To be completed by Plaintiff's Rep.

Name: David A. Gallo & Associates LLP

Address: 47 Hillside Avenue– 2nd Floor
47 Hillside Avenue

Telephone:

Email:

Signature/Date: 3/12/26

C. To Be Completed by Purchaser

Name:

Address:

Telephone:

Email:

Signature/ Date: 3/12/26

Additional Copies of this Form can be found at https://www.nycourts.gov/forms/foreclosure/

Rev. 12/19